

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 689

BY JUDICIARY, RULES AND ADMINISTRATION COMMITTEE

AN ACT

RELATING TO ADMINISTRATIVE SUBPOENAS; AMENDING SECTION 19-3004A, IDAHO CODE, TO REVISE A PROVISION REGARDING AN ADMINISTRATIVE SUBPOENA; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 19-3004A, Idaho Code, be, and the same is hereby amended to read as follows:

19-3004A. ADMINISTRATIVE SUBPOENA -- ELECTRONIC COMMUNICATION AND REMOTE COMPUTING SERVICES. (1) A provider of an electronic communication service or remote computing service that is transacting or has transacted any business in the state shall disclose the following to a prosecuting attorney or the attorney general pursuant to an administrative subpoena issued by the prosecuting attorney or attorney general:

(a) Records and information in its possession containing the name, address, local and long distance telephone connection records, or records of session times and durations, length of service, including the start date; and

(b) Records and information in its possession containing the types of service utilized, telephone or instrument number or other subscriber number or identity, including any temporarily assigned network address; and

(c) Records and information in its possession relating to the means and source of payment for such service pertaining to a subscriber to or customer of such service.

The provider of an electronic communication service or remote computing service shall deliver the records to the prosecuting attorney or attorney general within fourteen (14) days of receipt of the subpoena.

(2) For the purpose of this section, the following definitions shall apply:

(a) "Electronic communication service" has the same meaning as provided in section 18-6701(13), Idaho Code.

(b) "Remote computing service" means the provision to the public of computer storage or processing service by means of an electronic communications system as defined in section 18-6701(12), Idaho Code.

(3) In order to obtain the records or information, the prosecuting attorney or attorney general shall certify on the face of the subpoena that there is reason to believe that the records or information being sought are relevant to a legitimate law enforcement investigation concerning a violation of section 18-1505B, 18-1506, 18-1506A, 18-1507, 18-1507C, 18-1508, 18-1508A, 18-1509, 18-1509A, 18-1515, 18-2202, or 18-6605, Idaho Code.

(4) No subpoena issued pursuant to this section shall demand records that disclose the content of electronic communications or subscriber

1 account records disclosing internet locations which have been accessed in-
2 cluding, but not limited to, websites, chat channels and news groups, but
3 excluding servers used to initially access the internet. No recipient of a
4 subpoena issued pursuant to this section shall provide any such content or
5 records accessed, in response to the subpoena.

6 (5) On a motion made by the electronic communication service or remote
7 computing service provider prior to the time for appearance or the produc-
8 tion of documents under the subpoena issued pursuant to this section, a court
9 of competent jurisdiction may quash or modify the administrative subpoena if
10 the provider establishes that the records or other information requested are
11 unusually voluminous in nature or if compliance with the subpoena would oth-
12 erwise cause an undue burden on the service provider.

13 (6) No cause of action shall lie in any court against an electronic
14 communication service or remote computing service provider, its officers,
15 employees, agents or other specified persons for providing information,
16 facilities or assistance in accordance with the terms of an administrative
17 subpoena issued under this section.

18 (7) A person who is subpoenaed under this section and who fails to ap-
19 pear or produce materials as required by the subpoena, or who refuses to be
20 sworn or give testimony, may be found to be in contempt of court. Proceed-
21 ings to hold a person in contempt under this subsection may be brought in the
22 county where the subpoena was issued.

23 (8) Nothing in this section shall limit the right of a prosecuting at-
24 torney or the attorney general to otherwise obtain records or information
25 from a provider of electronic communication service or remote computing ser-
26 vice pursuant to a search warrant, a court order or a grand jury or trial sub-
27 poena.

28 SECTION 2. An emergency existing therefor, which emergency is hereby
29 declared to exist, this act shall be in full force and effect on and after
30 July 1, 2026.